

23SMCV04066 23SMCV04066

County: los-angeles

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Case Number: 23SMCV04066 Hearing Date: July 30, 2026 Dept: P

Tentative

Ruling

Tom

Kalili v. 436 N. Roxbury Drive, LTD., Case No. 23SMCV04066

Defendant's

Motion for Leave to Amend Answer

Hearing

Date: July 30, 2026

Background

Plaintiff

Tom Kalili sues Defendants 435 North Roxbury Drive, Ltd. and Schneider Commercial Management, Inc. ("Defendants") for negligence, alleging that one of Defendants' maintenance workers knocked a rubber seal loose, allowing water to flow through Kalili's unit, causing damage. (Complaint, ¶ 6.)

On August

30, 2023, Kalili filed the complaint.

On October

18, 2023, 436 N. Roxbury Drive answered.

On March

1, 2024, 436 N. Roxbury Drive filed a cross-complaint against Kohl Building

Maintenance.

On June

23, 2026, Defendants filed this motion for leave to amend answer. On July 13, 2026, Kalili filed opposition. On July 15, 2026, Defendants replied.

Jury Trial

is set for October 19, 2026

Defendants

seek to add a tenth affirmative defense based on property damage waivers and insurance obligations in the lease agreement. (Motion for Leave to amend, p. 3.) Defendants argue that their current counsel substituted into this matter on June 27, 2025, and only recently discovered the defense and that it was not asserted in the initial answer. Defendants also argue that there has been no delay in bringing this motion because they are new to this case, and that the amendment will not prejudice plaintiff, since trial was continued to October.

In

opposition, Plaintiff essentially argues that the amendment will be futile because the referenced lease provisions are invalid as a matter of law.

In reply,

Defendant argues that the Court need not reach the merits of the proposed amendment, that there is no prejudice, and that Defendants raised this issue as soon as they substituted into this case.

Motion

for Leave to Amend

The trial

court has discretion to allow amendments to pleadings in the furtherance of justice. (Code Civ. Proc. § 473, subd. (a)(1).) “Any judge, at any time before or after commencement of trial, in the furtherance of justice, and upon such terms as may be proper, may allow the amendment of any pleading.” (Code Civ. Proc. § 576.) “There is a policy of great liberality in permitting amendments to the pleadings at any stage of the proceeding.” (Berman v. Bromberg (1997) 56 Cal.App.4th 936, 945 [citations omitted].) “An application to amend a pleading is addressed to the trial judge’s sound discretion.” (Ibid. [citations omitted].) A judge may deny a motion for leave to amend where a

moving party has been dilatory in seeking leave to amend and such delay has prejudiced the opposing party. (Hirsa v. Superior Court (1981) 118 Cal.App.3d 486, 490 ("Hirsa").) "It is difficult to understand how [a named defendant] can be prejudiced by amendment to add an additional theory of liability against it." (Ibid.)

"[I]t is an abuse of discretion to deny leave to amend where the opposing party [is] not misled or prejudiced by the amendment." (Kittredge Sports Co. v. Superior Court (1989) 213 Cal.App.3d 1045, 1048 ("Kittredge").) Prejudice exists where the amendment would require delaying the trial, resulting in loss of critical evidence, or added costs of preparation. (Solit v. Tokai Bank, Ltd. New York Branch (1999) 68 Cal.App.4th 1435, 1448 ("Solit").)

A motion

for leave to amend must include a separate declaration specifying: "(1) The effect of the amendment; (2) Why the amendment is necessary and proper; (3) When the facts giving rise to the amended allegations were discovered; and (4) The reasons why the request for amendment was not made earlier." (Cal. Rules of Court, Rule 3.1324(b).) A motion for leave to amend must "[i]nclude a copy of the proposed amendment or amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments." (Cal. Rules of Court, Rule 3.1324(a)(1).) Moreover, a motion to amend must "[s]tate what allegations in the previous pleading are proposed" to be deleted or added, if any, and must set forth the page, paragraph, and line number of such allegations. (Cal. Rules of Court, Rule 3.1324(a)(2)-(3).)

Discussion

Defendants

submit a declaration and the proposed amended answer, satisfying the requirements of rule 3.1324.

It is not

proper to consider the merits of the proposed affirmative defense on a motion for leave to amend. Ordinarily, moving for leave to amend to add a significant defense three months from trial would be cause for consideration of the delay, especially in a case like this where the proposed basis for the new defense is a clause in the lease that the parties should have been aware of since the outset.

However,

since it does not appear that the proposed amendment will require additional discovery responses, and because there is time to hear a challenge on the pleadings on this defense, if Kalili is so inclined, leave to amend is warranted.

Conclusion

Defendants'

Motion for Leave to Amend is GRANTED.